No. USAP9 24-164

IN THE

SUPREME COURT OF THE UNITED STATES

RANDALL KELLY MEYER

Petitioner,

v.

DONALD J. TRUMP ET. AL.

Respondents

On Petition for Writ of Certiorari to the
United States Court of Appeals
for the Ninth Circuit

PETITION FOR WRIT OF CERTIORARI

RANDALL KELLY MEYER
Evolution Biologist,
Extraordinaire, and,
Pro Se Litigant
General Delivery
Kea'au, HI 96749
541-521-4639 (none)

QUESTIONS PRESENTED

Whether a society may utilize the law, or absence of law, or absence of enforcement, to effect a re-enslavement of persons, formerly, familially bonded to ownership, and formerly, familially freed, and whether the instrumentation of government legal apparatus, exercised under color of law, and, in like or similar fashion, government finance, under political pretense, may silence an academic professional through a calculated policy of libel and slander, to wit, "identity theft", or "reputational character assassination" in order that leverage for reduced wages and salary, and whether such may be applied, with impunity, to said specialist or professional. And finally, the question is whether a Seventh Amendment civil jury trial can be denied to such a person, and whether a civil rights attorney, i.e. "Civil Gideon", must be afforded to a person, reduced in such a manner, to the depths of such penury and servitude, as petitioner has undeniably been reduced.

Whether a State, or States, who have little or no legal standing to sue Petitioner in Federal Court, and who have no direct contract or business dealings with Petitioner, can utilize legal legerdemain and a tenuous, ephemeral, infinitesimal, nonexistent connection to Petitioner's alleged contract, held, as it is, by a separate agency (Nelnet, not named in said suit) to make suit, and, further, can seek to cancel a lawfully enacted executive order from a Duly Elected President (DEPJRB); to wit, can MOHELA's slight connection to Missouri's finances allow blatantly politicized undermining of a President, or as the case may be, a "king" ("Long Live The King"), or, as fate and irony would have it, one named person DFPTDJT (Disgraced

Former President and Traitor Donald J. Trump, as was adjudicated in the Colorado State Supreme Court, and as Petitioner properly, factually, in a non-"ad hominem" way, identified him in the earlier District Court Suit, not as he is listed, here, as the co-Defendant/Respondent), as the aforementioned, aforesaid Duly Elected President was faithfully executing the laws, for the good of the country, and strength of the nation, as is his privilege, and, in fact, both his charge and duty, and may said Defendants/Respondents, in their "unbounded thirst for ridiculous pomp, foolish adulation and selfish avarice", do so for patently, transparently, traitorously, asinine facile "inanity"and for base, crass, unconscionable political and financial advantage, to the detriment of law and civil rights and the national interest, and strength of the nation?

Whether the government, or agency of the government, through malfeasant or negligent application and execution of the laws can drive a man out of his profession, out of his home, out of the country, and then drag him back to said country, only to continue to deny him his professional position and salary. Further, can said government and instrumentalities prevent this person from leaving, again, and from moving to the country of his choice, wherein he might begin his adult life and work in his intended and earned profession, after some 20 years of idleness, misapplication, underemployment, misemployment, unemployment and general unwilling and unremunerated servitude.

PARTIES TO THE PROCEEDING

PETITIONER is, Randall Kelly Meyer, Evolution Biologist "Extraordinaire", and Pro Se Litigant, and former Independent Candidate for the At-Large Vermont Congressional Seat (2014), as formerly—and famously--occupied by both "His Excellency", Matthew "The Spittin' " Lyon (1797-1801), and the Honourable Justin "Land Grant" Morrill (1855-1898).

AND, RESPONDENTS are; Joseph Biden (DEPJRB), in his Official Capacity (now, DFPTDJT, Donald Trump), STATE OF NEBRASKA, via MIKE HILGERS, in his official capacity as Attorney General of the State of Nebraska; STATE OF MISSOURI, via ANDREW BAILEY, in his official capacity as Attorney General of the State of Missouri, STATE OF ARKANSAS, via JOHN TIMOTHY GRIFFIN, in his official capacity, as Attorney General of the State of Arkansas; STATE OF IOWA, via BRENNA BIRD, in her official capacity, as Attorney General of the State of Iowa; STATE OF KANSAS, via KRIS WILLIAM KOBACH, in his official capacity as Attorney General of the State of Kansas, and the STATE OF SOUTH CAROLINA, via ALAN MCCRORY WILSON, in his official capacity, as Attorney General of the State of South Carolina.

DIRECTLY RELATED PROCEEDINGS

EEOC # 523-2008-00852 and #523-2008-00851 , circa Summer-Fall, 2008

USDOJ dated July 20, 2022, and numbered 171374-MGG.

Canada, Political Asylum Case (2020-2022):

RAD File VC1-07215

RPD File VC0-03082,

Federal Court IMM-4274-22

USA, Illegally Denied Federal Civil Jury Trial Cases (2019-2025) :

United States District of Vermont, Case No. 5:19-cv-175, (2019) ; Meyer v. The United States of America.

U.S. District Court, Vermont, Case no. ????, (2019) (Lost paperwork; Petitioner driven from home and paperwork, books, files, personal papers and effects, etc.; case abandoned due to "Lawfare").

U.S. District Court, Vermont, Case no. ????, (2019) (Lost paperwork; Petitioner driven from home and paperwork, books, files, personal papers and effects, etc. case abandoned due to "Lawfare").

U.S. District Court, Washington Western, Case no. 2:22-cv-00232-RSM (circa 2020-21) ; Meyer et. al. v. George Bush et. al.

U.S. District Hawaii (circa 2023-2024) 1:23-cv-00470-JMS-WRP ; Meyer et. al. v. Biden et. al.

Meyer v. Biden et. al., U.S. Appeals, Ninth Circuit (circa 2024 to present) No. 24-164.

TABLE OF CONTENTS

QUESTIONS AND PARTIES ii

DIRECTLY RELATED PROCEEDINGS..... iv

TABLE OF CONTENTS v

TABLE OF AUTHORITIES viii

PETITION FOR A WRIT OF CERITORARI xix

OPINIONS BELOW xix

STATEMENT OF JURISDICTION xix

RELEVANT STATUTORY PROVISIONS xix

STATEMENT OF THE CASE 1-40

I. Prologue to a Preface

II. Prefatory Comments

III. The Law

IV. Vocabulary

V. History

VI. Philosophy

VII. Science

VIII. Art

IX. Summation

APPENDICES..... 1a-2a

Table of Authorities

Constitutional Provisions:

U.S. Const. art. I, § 10, cl. 1 ..... pg. 2, 7, 29

U.S. Const. art. IV, § 4 ..... pg. 29, 40

U.S. Const. amend. V, cl. 4 ..... pg. 29, 31

U.S. Const. amend. VII ..... pg. 12, 13, 17, 23

U.S. Const. amend. XI. ..... pg. 11

U.S. Const. amend. XIV ..... pg. 24

U.S. Const. amend. XIV, § 1, 3-4 ..... pg. 30

U.S. Const. amend. VI (confrontation and notice clauses) ..... pg. 30, 33

U.S. Const. art. I § 9, cl. 8 ..... pg. 24, 29, 33, 36

U.S. Const. art. I § 9, 10 ..... pg. 24

U.S. Const. amend. I ..... pg. 9, 12, 12, 13

Statute and Public Laws:

18 U.S.C. § 2381 ..... pg.

20 U.S.C. §§ 1098aa–1098ee (HEROES Act of 2003) ..... pg.

42 U.S.C. ch. 21 § 1994 ..... pg.

28 U.S.C. § 1361 ..... pg. 25

7 U.S.C. § 2011 et. seq. ..... pg. 26

21 U.S.C. ch. 12 § 601 et.seq. ..... pg. 25

7 U.S.C. § 301 ..... pg. 20, 25

7 U.S.C. § 321 ..... pg. 20, 25

18 U.S.C. ch. 37 § 792 et. seq. ..... pg.

14 Stat. 27-30 ..... pg.

18 Stat. 335-337 ..... pg.

16 Stat. 140-146 ..... pg.

16 Stat. 433-440 ..... pg.

34 Stat. 669, ch. 22, 17 Stat. 13 ..... pg.

79 P.L. 396, 60 Stat. 230 (1946) ..... pg.

Pub. L. 59-382 ..... pg.

Pub. L. No. 86-341 ..... pg.

73 Stat. 606 (1959) ..... pg.

Public Law 88-525-AUG. 31, 1964 ..... pg.

Pub. L. 61-470 ..... pg.

Pub. L. 65-150, 40 Stat. 553 ..... pg.

28 USC § 4101 ..... pg.

42 U.S.C. § 1983 ..... pg. 3, 15, 28-29

42 U.S.C. § 1985(3) ..... pg. 3, 15, 28-29

18 U.S.C. § 242 ..... pg. 3, 15, 29

18 U.S.C. § 241 ..... pg. 3, 15, 29

18 U.S.C. § 245 ……..…….. pg. 3, 15,

29

Relevant Court Cases:

EEOC # 523-2008-00852 and #523-2008-00851 , circa Summer-Fall, 2008 ……. pg. 20

United States District of Vermont, Case No. 5:19-cv-175, (2019) ; Meyer v. The United States of America ……..……..……. pg.

U.S. District Court, Vermont, Case no. ????, (2019) ……..……. pg.

U.S. District Court, Vermont, Case no. ????, (2019) ……. pg.

U.S. District Court, Washington Western, Case no. 2:22-cv-00232-RSM (circa 2020-21) ; Meyer et. al. v. George Bush et. al. ……. pg. 15, 16

USDOJ dated July 20, 2022, and numbered 171374-MGG. …….. pg. 15, 16

Canada (2020-2022) (Political Asylum complaint, concurrent with West WA District action, above; You'll note, I left the USA in September of 2020, four months before "the unfortunate unpleasantness". I dunno? I guess I am just clairvoyant?) : RAD File VC1-07215 …... pg. 16

Canada (2020-2022): RPD File VC0-03082. ……..…… pg.16

Canada (2020-2022): Federal Court IMM-4274-22 ……..…… pg. 16

U.S. District Hawaii (circa 2023-2024) 1:23-cv-00470-JMS-WRP ; Meyer et. al. v. Biden et. al. ……..……..……. pg. 11, 17, 25

Meyer et. al v. Biden et. al. ; Civ. 23-00470 JMS-WRP, judgement issued 12-12-2023. (Michael Sea-bright response/result of #10, above) ……..…….. pg. 11, 17

U.S. Appeals, Ninth Circuit (circa 2024 to present) No. 24-164 …….. pg. 11

Irrelevant, Erroneous Court Cases :

Nebraska et. al. vs. Biden 4:22-cv-01040. District Court. ……. pg. 1

Joseph Biden, et al. v. Nebraska, et al. 600 U.S. Sup. Court, Docket 22-506. 2023. .. pg. 1

Nebraska et. al. vs. Biden certiorari filing. ..... pg. 40

Case Law:

4:22-cv-01040, District Court Eastern Missouri, 09/22/2022 ..... pg. 1

Biden v. Nebraska et. al., (2023) 600 US 477 ..... pg. 1, 25, 41, 42

Wood v. Ward, 30FED.CAS—31 (1888) ..... pg. 28

Luther v. Borden, 1849 (Dorr Rebellion) ..... pg.

Marbury v. Madison (1803) ..... pg. 25

NTEU v. Nixon 492 F.2d 587 (D.C. Cir. 1974) ..... pg. 25

Chisholm v. Georgia, 2 U.S. 419 (1793) ..... pg. 11

Gitlow v. New York, 268 U.S. 652 (1925) ..... pg. 24

Torres v. Texas Department of Pubic Safety, 597 U.S. (2022) ..... pg. 11

Central Virginia Community College v. Katz, 547 U.S. 356 (2006) ..... pg. 11

PennEast Pipeline Co. v. New Jersey, 594 U.S. (2021) ..... pg. 11

Meyer v. Nebraska, 262 U.S. 390 (1920) ..... pg. 24

Keyshian v. Board of Regents, 385 U.S. 589 (1967) ..... pg. 24

Adler v. Board of Education, 342 U.S. 485 (1952) ..... pg. 24

United States v. AT&T, see 552 F. Supp. 131 (D.D.C. 1982) ..... pg. 25

Students For Fair Admission v. Harvard, 600 U.S. 181 (June 29th, 2023) ..... pg.

Allgeyer v. Louisiana, 165 U.S. 578 (1897) ..... pg.

U.S. vs. Flores 1997 ..... pg. 26, 28

U.S. vs. Cuello 1999 ..... pg. 26, 28

U.S. vs. Tecum 2001 ..... pg. 26, 28

U.S. vs. Lee 2001 ..... pg. 26, 28

U.S. vs. Ramos 2004 ..... pg. 26, 28

U.S. vs. Ronald Evans 2007 ..... pg. 26, 28

U.S. vs. Navarrete 2008 ..... pg. 26, 28

U.S. vs. Bontemps 2010 ..... pg. 26, 28

U.S. vs. Global Horizons 2010 ..... pg. 26, 28

Lochner v. New York 1905 ..... pg. 26, 28

Wieman v. Updegraff, 344 U.S. 183 (1952)) ..... pg. 9, 13

Legal Academic Bibliography:

Oldham, James. "Trial by Jury: The Seventh Amendment and Anglo-American Special Juries", New York, USA: New York University Press, 2006, pp. v-vi.-367 https://doi.org/10.18574/nyu/9780814762592.003.0002 ..... pg. 13, 17, 18, 18

Thomas, Suja. The Seventh Amendment, Modern Procedure and the English Common Law. 82 Wash. U. L.Q. 687 (2004) ..... pg. 18

Pomorski, Stanislaw. American common law and the principle nullum crimen sine lege, Berlin, Boston: De Gruyter Mouton, 1975. https://doi.org/10.1515/9783111546766 … pg. 18

Bodenheimer, E., Oakley, J. B. (John B., & Love, J. C. (1980). An introduction to the Anglo-American legal system?: readings and cases. West Pub. Co. ..... pg. 18

Martinez-Torron, J., & Lynch, J. E. (2000). [Anglo-american law & canon law: Canonical roots of the common law tradition]. Studia Canonica, 34(2), 551 : (Retrieved from https://www.proquest.com/scholarly-journals/anglo-american-law-canon-canonical-roots-common/docview/214174650/se-2) ..... pg. 18

Scott, Kyle. Dismantling American Common Law: Liberty and Justice in Our Transformed Courts. Oxford University Press, 2007. ..... pg. 18

Thomas, Suja A. The Missing American Jury: Restoring the Fundamental Constitutional Role of the Criminal, Civil, and Grand Juries. New York: Cambridge University Press, 2016 ..... pg. 18

Darrell A.H. Miller. "Text, History, and Tradition: What the Seventh Amendment Can Teach Us About the Second" Yale Law Journal, A. Miller, Darrell. https://openyls.law.yale.edu/bitstream/20.500.13051/10037/2/23_122YaleLJ852_Janaury2013_.pdf ..... pg. 18

Haskins, Charles H., "The Rise of the Universities", Henry Holt and Co., 1923. ..... pg. 19

Schweber H. The Creation of American Common Law, 1850–1880: Technology, Politics, and the Construction of Citizenship. Cambridge University Press; 2004. ..... pg. 18

Reimann, Mathias. “The Reception of Continental ideas in the common law world, 1820-1920”. Berlin : Duncker & Humblot, [1993]. Comparative studies in continental and Anglo-Anglo-American legal history ; Bd. 13. ISBN : 3-428-07682-6 ..... pg. 18

Campbell, Tom W. Two Fighters and Two Fines: Sketches of the Lives of Matthew Lyon and Andrew Jackson. Little Rock: Pioneer Publishing Company, 1941. ..... pg. 1

Zug, Charles U. (September 1, 2021). "Creating a Demagogue: The Political Origins of Daniel Shays's Erroneous Legacy in American Political History". American Political Thought. 10 (4): 601–628. doi:10.1086/716687. ISSN 2161-1580. S2CID 243849281.... pg. 18

Lerner, Renee Lettow, The Resilience of Substantive Rights and the False Hope of Procedural Rights: The Case of the Second Amendment and the Seventh Amendment (2021). 116 Northwestern Law Review 275 (2021), GWU Legal Studies Research Paper No. 2021-43, GWU Law School Public Law Research Paper No. 2021-43. ..... pg. 18

Sandoz, E. (1993). The Roots of Liberty: Magna Carta, ancient constitution, and the Anglo-American tradition of rule of law. University of Missouri Press. ..... pg. 2, 18

Sward, Ellen E., The Seventh Amendment and the Alchemy of Fact and Law (March 24, 2003). Seton Hall Law Review, Vol. 33, No. 573, 2003. ……..… pg. 18

George, Robert. "Holmes on Natural Law", Villanova Law Revies. 2003 Vol. 48 Iss. 1. …… pg. 1, 3, 3, 34, 41

Bogen, David. "The Free Speech Metamorphosis of Mr. Justice Holmes". 1982, Hofstra Law Review Vol. 11:97 pg. 118-120 …….. pg. 1, 3, 34, 41

Nietzsche, Friedrich. On the Use and Abuse of History for Life. 1874. Translated by Ian Johnston, Vancouver Island University, Nanaimo, BC, Canada, 2010. ……..…… pg. 1, 10

Bowen, Catherine Drinker. Miracle At Philadelphia: The Story of the Constitutional Convention, May to September, 1787. Hamish Hamilton, Little, Borwn, and Company, 1966-1967. …… pg. 3-4, 10, 12, 21-22

Jona Goldschmidt, Who Sues the Supreme Court, and Why? Pro Se Litigation and the Court of Last Resort, 8 Ind. J.L. & Soc. Equality 181 (2020) …… pg. 18

Persaud, Kyle. Pro Se Litigants in the U.S. Supreme Court: How Do They Fare?, 55 ST. MARY'S L.J. 61 (2024). …….… pg. 18

Girvin, Earl. English Statutes and The American Common Law, J.D. Thesis, UCAL. May 1929. ..... pg. 18

Handwritten transcript of letters among Andrew Jackson, Charles Dickinson, Thomas Overton, and Hanson Catlet regarding the 1806 Jackson-Dickinson duel, 1806 May 23. (Scanned original at https://teva.contentdm.oclc.org/digital/collection/p15138coll33/ - id/214/rec/5, transcription at https://tsla.tnsosfiles.com/digital/teva/transcripts/42207.pdf) (Andrew Jackson Collection, 1788-1942. Tennessee Virtual Archive (TeVA) 2023). ..... pg. 5

Letter to John Sevier. 3 Oct. 1803. (Scanned orginal at https://teva.contentdm.oclc.org/ - digital/collection/p15138coll18/id/1095/rec/1, transcription at https://tsla.tnsosfiles.com/ - digital/teva/transcripts/42200.pdf, Tennessee Virtual Archive, Tennessee State Library and Archives 2023), (also published in Tennessee Gazette, 26 Oct. 1803). ..... pg. 5

Bibliography of Dystopian Fiction and Near-Dystopian Non-Fiction :

Orwell, George. Politics and the English Language. Penguin Modern Classics, 2013. .. pg. 2

Butler, Samuel. Erewhon, or, Over the range. Trübner & Co., 1872. ..... pg. 2

Orwell, George. Animal Farm. Secker and Warburg, 1945 ..... pg. 2, 14, 15

Heller, Joseph. Catch-22. New York: The Modern Library, 1961 ..... pg. 2

Vonnegut, Kurt. "Tomorrow...and Tomorrow...and Tomorrow." Galaxy Science Fiction,

January 1954, p. [884-894] ..... pg. 2

Bradbury, Ray. Fahrenheit 451. Ballantine Books, 1953 ..... pg. 2

Huxley, Aldous. Brave New World. 11th ed., Vintage, 2004 ..... pg. 2

Zamyatin, Yevgeny. We. Translated by Clarence Brown, Penguin, 1993. ..... pg. 2

Orwell, George. 1984. London: Secker and Warburg, 1949. Print. ..... pg. 2

Kafka, Franz. The Trial. Schocken Books, 1999 (pgs. 1-195). ..... pg. 1-3, 5, 11-12, 14

Kafka, Franz. The Castle. Definitive ed. Modern Library, 1969; 1954. ..... pg. 1-2

Kafka, Franz. Amerika. trans. by Willa & Edwin Muir, Schocken Books, 1996 .... pg. 1-3, 6

The Prisoner, (ITC Entertainment 1967-1968). ..... pg. 2

Hašek, Jaroslav. The Good Soldier Svejk. Translated by Cecil Parrott, Heinemann, 1973-1974 ..... pg. 1-2

Bentham, Jeremy, 1748-1832. The Panopticon Writings. London ; New York :Verso, 1995. ..... pg. 2

Milton, John, 1608-1674. (1992). Areopagitica : a speech of Mr. John Milton for the liberty of unlicensed printing, to the Parliament of England. Santa Barbara, Calif. :Bandanna Books. ..... pg. 2

Camus, Albert. *The Myth of Sisyphus*. Translated by Justin O'Brien, Penguin Classics, 2000. ..... pg. 5

Miscellaneous :

Dr Anonymous (A.K.A. Randall Kelly Meyer) and the Circle of Least Confusion, a music album (CD; Filed Supplemental Materials), logical explication, and legal accusation,

recorded 05/03/2013, written and performed by Randall Meyer, ostracized scientist residing in the U.S.A., in the 21st century. ……..... pg. 2, 6

"Mission Readiness, Breaking Point" (2022) Council for a Strong America …… pg.

Walter Sobchack (The Big Lebowski, Working Title Films, 1998) …… pg.

F.E.Wright, "The Manufacture of Optical Glass and of Optical Systems: A War-Time Problem", Paper on Optical Glass No. 40, Ordnance Dept. Document No. 2037, Washington, D.C. 1921 …… pg.

National Security Commission Artificial Intelligence report (NSCAI), March 1, 2021 … pg.

Menand, Louis. "The Metaphysical Club: A Story of Ideas in America". Farrar, Straus and Giroux, 2001 …….……..…….. pg. 1, 4

President Biden executive order on A.I. Safety (10/30/2023) …… pg.

November 1st and 2nd,, 2024, Bletchley Declaration …….…… pg.

Rossman, Ralph; Clipping Dial for Circular Knitting Machine, USP. #2,810,280 . … pg. 3, 6

New York Times, 03/04/2013, entitled “Banks Find More Wrongful Foreclosures Among Military Members” ……...…… pg.

“The New Industrial Economist” [John Kenneth Galbraith], David R. Henderson, May 2, 2006, Wall Street Journal …… pg.

Stephen Jay Gould', 2001, “The Structure of Evolutionary Theory”, (pg. 7) ……..... pg. 20

Stephen Jay Gould, IQ and ‘math’ as a ‘Measure of Man / Wo-Man’, VHS / Youtube interview, (circa 1995) …….……..... pg 20

U.S.P. #3,033,071 (Hicks, 1962) “Fiber Optic Field Flattening Devices”. …….. pg. 8

Meyer, Randall. “Randall Meyer's Big Yellow Notebook, 2006-2022, 1-167 pages; A.K.A. Optical and Electrical Engineering for Strong A.I., via Vision, Touch, and etc”, entries from 2006-2022, Meyer’s Law discovered, October 2003, Meyer’s Law first evidenced, pg. 105 (07/05/2016), web (self) published, 10/02/2025 at https://ladnarofladner.github.io/ - index.html. See, also, https://ladnarofladner.github.io/Vision.html . …… pg. 2, 6, 6, 8,

Whitman, Walt. Leaves of Grass, McKay, 1888. ……... pg. 4, 6

Winchester, Simon. The Professor and the Madman : a Tale of Murder, Insanity, and the Making of the Oxford English Dictionary. New York :Harper Perennial, 1999. …… pg. 4

Black, Henry Campbell. Black's Law Dictionary: A Dictionary of American Law. First edition. St. Paul, MN: West Publishing Co., 1891. …… pg. 24, 27-32, 34

Murray, James and Minor, William Chester. A New English Dictionary on Historical Principles; Founded Mainly on the Materials Collected by The Philological Society. Oxford, Clarendon Press 1884-1928. …… pg. 4, 17

Johnson, Samuel. A Dictionary of the English Language. 1755. …… pg. 24

Trump, on Hannity. https://apnews.com/article/trump-hannity-dictator-authoritarian-presidential-election-f27e7e9d7c13fabbe3ae7dd7f1235c72 …… pg. 23

Trump, as King, Tweets. https://www.youtube.com/watch?v=R3Aif00OYEY ; CBS News, February 20 , 2025. …….… pg. 23

Obama Anti-slavery: https://www.bbc.com/news/world-us-canada-19719045#:~:text=More ……..pg. 23

Lundberg, Ferdinand. “America’s Sixty Families”. The Vanguiard Press, 1937. … pg. 36, 36

Lundberg, Ferdinand. “The Rich and the Super-Rich: A Study in the Power of Money Today”. Lyle Stuart, 1968. ..... pg. 36

Charles Frankel, Darnell Rucker. *The Chicago Pragmatists*. Minneapolis: University of Minnesota Press. 1969. Pp. ix, 200. *The American Historical Review*, Volume 76, Issue 2, April 1971, Page 565, https://doi.org/10.1086/ahr/76.2.565 ..... pg. 4, 37

Myers, Gustavus. 1912 “The History of the Supreme Court of the United States”. … pg. 36

Gilens, Martin, and Benjamin I. Page. "Testing Theories of American Politics: Elites, Interest Groups, and Average Citizens." *Perspectives on Politics*, vol. 12, no. 3, Cambridge University Press, 2014, pp. 564-581 ..... pg. 40

William Jefferson Clinton. quoted in the 106th Congress, Senate doc. 106-3, Volume XI, Evidentiary Record. ..... pg. 23

Clinton. William Clinton’s deposition, 08/17/1998 ..... pg. 17, 23.

President Barack Obama’s speech, Clinton Global Initiative. Sept. 25, 2012 ..... pg. 23

DFPTDJT vs. H. Clinton, in televised USA Presidential Debates, Sept. 26, 2016. https://www.debates.org/voter-education/debate-transcripts/september-26-2016-debate-transcript/ ..... pg. 23

Peter Welch vs. Randall Meyer and etc. VPT (PBS),October 23, 2014 debate, approx. 82:52 total min:secs, in 5 video-uploads. Links available via youtube channel https://www. - youtube.com/ @randallmeyer20001/videos ..... pg. 4, 6, 20

Peter Welch vs. Randall Meyer and etc., October 10, 2014. Public Access channel 17 (CCTV) Burlington, VT,. debate, (see, particularly, video 4 @ approx. 11:00 min. sec.), 94:32 total min:secs, in 5 video-uploads. Links available via youtube channel https://www.youtube.com/ - @randallmeyer20001/videos ..... pg. 4, 6, 20

Randall Meyer, On-line Post of Inflation Adjusted Analysis of Biologist Wages and Salaries; Based Upon the Published BLS Statistics. See, https://ladnarofladner.github.io/Supreme-CourtAndWagesBLS.html ; Retrieved 03/28/2026. ..... pg. 7, 16

Note of Zamyatin to Stalin, requesting permission to travel and work abroad. (195?) ... pg. ?

Whittington, Keith E. "Oliver Wendell Holmes, Natural Law (1918)." *American Political Thought*, Supplementary Material, Oxford UP, 2022, oup.com. ..... pg. 14

Jon Metz, AMREV~HESSIAN : Hessian Guide (George Henrich Rassmann), Rootsweb, https://freepages.rootsweb.com/~amrevhessians/military/a/amhessians17.htm, (Mar. 27, 2006). ..... pg. 3

Rossman, Marion Edgar."Rossmans in America", Published 1998, Pennsylvania Room - Centre County Library, P 929.2 Ro . ..... pg. 3, 6

Rossman, Marion Edgar. "Georg Heinrich Rassmann - School Teacher and Pastor", edited by M. A. Schwalm, (and, possibly, also , JSHA 1999 Journal. HETRINA Vol IV.). pg.3, 6

Oliver Wendell Holmes Jr., The Common Law, 1 (Little, Brown and Co. 1881). .... pg. 7, 14

Canadian Bill of Rights (1982), opening clause and preamble "Right to Free Assoc." ..pg. 16

Charles Darwin. M Notebook, August 18, 1838. ..... pg. 38

[1] Charles Darwin, recalling his father's wisdom, but, ultimately, via a Horace quotation. M and N notebooks, 1838. ..... pg. 38

REQUEST FOR A WRIT OF CERTIORARI

Petitioner Randall Kelly Meyer respectfully requests a Writ of Certiorari to review the judgement of the United States Court of Appeals for the Ninth Circuit.

OPINIONS BELOW

The opinion of the Ninth Circuit of Appeals is available by accessing the documents for case No. 24-164. The appeals case was based upon the earlier District Court Case, labelled and numbered, U.S. District Hawaii (circa 2023-2024) 1:23-cv-00470-JMS-WRP ; AKA Meyer et. al. v. Biden et. al. . Both cases, presumably, are unpublished, as petitioner has no copies, petitioner was given the "brush off", petitioner received no positive ruling on his case, and petitioner received no jury trial, which the constitution guarantees he should receive. Petitioner is no stranger to these proceedings and has lots of other "numbers", a few of these "numbers" were District Court cases, less relevant to this case; but these numbers point to cases wherein petitioner was also denied a jury trial (though, arguably, petitioner waived right to jury trial in at least one of these; petitioner cannot recollect which one.). Two of the previous three from the U.S. District Court, Vermont, I do not have numbers for, because I had to run for my life, and flee to Canada, and seek political asylum. It doesn't matter for those two (both originated, filed, in 2019) because I did not pursue them and abandoned those two cases. The third was numbered, Case No. 5:19-cv-175, (2019), and titled, AKA, Meyer v. The United States of America. Geoffrey Crawford dismissed it on 05/05/2020. Finally, the only other case I have had was originated while I was residing n in Canada, seeking political asylum (from approx..m Sept 2020 through October 2022), and

was filed in the U.S. District Court, Washington Western, with Case no. 2:22-cv-00232-RSM (originated and filed circa 2020-21), and named, AKA, Meyer et. al. v. George Bush et. al. . Hawaii District court (1:23-cv-00470-JMS-WRP) deemed my filing to be frivolous, and the Court of Appeals, if I recall correctly, would not hear the case because when the Appeals court sent my In Forma Pauperis petition back to District court to be assessed, they denied my In forma Pauperis application, since they deemed the case frivolous, and presumably, do not wish to have their ruling reviewed by the ninth circuit court of appeals.. If I recall correctly, the Appeals court waited a year, and then sent me a ruling that I had abandoned the case, when I hadn't abandoned it. Not to put too fine a point on it, I was refused my rights to a jury trial, and refused an appeal, because I could not pay to appeal, and the person in charge of allowing my appeal, via my "pauper" status, probably didn't want the case reviewed, lest it be overturned.

STATEMENT OF JURISDICTION

The Hawaii District Court, in the matte of Civ No. 23-00470 JMS-WRP, entered judgment on December 12, 2023, signed by Judge Michael Seabright. The Ninth Circuit of Appeals entered judgement on _____ and illegally denied, again, the petitioner's right to the exercise of the Seventh Amendment guarantee to a federal jury trial, in civil matters of common law, wherein the damages exceeded 25$. The earlier District Court filings, in Vermont, were illegally dismissed, sending the Petitioner, fleeing for his life, to Canada, where he continued to sue, and then, fleeing, again, to Hawaii, from where he

presently sues. The government cannot expect such a persecuted person to know what exact dates these filings and orders were issued. If the government, themselves, i.e. "your honors", can't keep track of the dates, petitioner cannot possibly be expected to keep better track of the government than the government can, given that the government has purposefully sent the petitioner into panic and flight. In short, the internet will not tell the petitioner when the orders were issued and cases were dismissed, and it is unlikely that the government has published the cases, i.e. assigned them a ## F.Xth ### style listing, and given that petitioners cases and arguments and reasonings and requests and pleadings were taken up with miniscule thought and attention, and petitioners credibility was again maligned by "Der Prozess", this request for information that I don't have can only be regarded, by me, with extreme suspicion. This Court has jurisdiction under U.S.C § 1254(1). This Request for Writ of Certiorari was filed in a timely fashion, several times, a beginning almost a year ago, and extending right up to this April-May, a year later. I am not dragging my feet and I have wasted much "pen and ink" on the matter. I desire only to be a scientist, to be paid well, for good work, to enjoy the community, friendship, and respect of my colleagues, and to write my book; the latter item in the list, being directly delayed by this interminable legal quagmire. This 5 year old case, and 20 year old libel and slander, is a weight around my neck, the conclusion of which must be expedited. So I re-iterate, the filing is timely (check the court case numbers and documents, yourself, and check the clerk's letters and "back and forth" with me), and I reiterate, "This Court has jurisdiction under U.S.C § 1254(1)".

RELEVANT STATUTORY PROVISIONS

This case is a First Amendment case, and a Seventh Amendment case, and in the attempt to secure my academic freedom, denied to me these previous 20 or so years, and to secure the freedom to live and work and to not be censored by various bureaucrats, frequently, disingenuously, citing "market forces" or legal minutiae, while ignoring the broad protections that I am afforded within a functional republic, with a functioning economy, free press, and robust higher education system, it is within this attempt to secure 1st and 7th amendment protections that I find myself utilizing 4th, 5th, 6th, 10th,, 14th and a series of other constitutional provisions, as provided in the Table of Authorities and cited in the text. Furthermore, ample citations of statute and case law are made, especially focusing on such landmark cases of the 1950s "Red Scare", i.e. Adler, Lochner, Gitlow, Wood v. Ward, and centering on the main civil rights statutes that allow me access, or rather, should have allowed me access to the court system, namely, 42 U.S.C. § 1983 ; 42 U.S.C. § 1985(3) ; 18 U.S.C. § 242 ; 18 U.S.C. § 241 ; 18 U.S.C. § 245; and the justices must own a copy of such statutes, as they are allowed to own books, unlike me, who, had his books confiscated in Vermont, and has been running ever since, looking for a place to live, so that he may collect his books again, and become an academic. I am 3000 miles away from my birthplace and from the state I grew up in and all of my friends and family. I came here, to Hawaii, to begin my academic career, or, failing that, to run, again, this time, to Australia. If you wish to read the main thrust of my legal arguments, citing specifically the provisions, statutes, cases and constitutional provisions and amendments, you must "slog" through the entirety of this Request for a writ of Certiorari", for I have

explained it clearly, concisely, pointedly, through 5 years and 5 lawsuits (three of some length and 2 abandoned.) you have all the information you need to decide if you wish to solve this ((1) egregious and repeated violation of my rights, and (2) important constitutional questions. I also cite the Biden v. Nebraska ruling, giving this court a chance to correct it's earlier error, of just a few years ago, in "unforgiving my forgiveness", and essentially, ":taking candy from a baby". Defendants/Respondents were quite lowly and cowardly and craven in their actions against the American people, and this suit can rectify the situation, if only, they have the courage to admit they made a mistake, and to use their power to rectify the situation.